

SENATE BILL NO. 311

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A BILL FOR AN ACT ENTITLED: "AN ACT ENHANCING LEGISLATIVE UNDERSTANDING OF STATE-
TRIBAL RELATIONS; REQUIRING THE ~~LEGISLATIVE SERVICES DIVISION~~ STATE DIRECTOR OF INDIAN
AFFAIRS TO WORK COLLABORATIVELY TO PROVIDE INFORMATION AND TRAINING OPPORTUNITIES
TO LEGISLATORS; REVISING THE DEADLINE FOR PROVIDING A REPORT TO TRIBAL GOVERNMENTS;
AMENDING SECTIONS SECTION 2-15-143 AND 5-11-142, MCA; AND PROVIDING AN EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. State-tribal relations training. (1) In collaboration with ~~the state director~~
~~of Indian affairs and the state-tribal relations committee~~ THE LEGISLATIVE SERVICES DIVISION AND THE STATE-TRIBAL
RELATIONS COMMITTEE, the ~~legislative services division~~ STATE DIRECTOR OF INDIAN AFFAIRS shall make readily
available to all legislators information and training on:

- (a) Indian law;
 - (b) the history of federal Indian policy; AND
 - (c) the legal rights of tribal members ; ~~and~~
 - (d) ~~social, economic, and cultural issues of concern to tribes.~~
- (2) The information and training under subsection (1) must include:
- (a) regularly updated tribal relations handbooks provided to legislators;
 - (b) information and notifications regarding training offered by the governor's office pursuant to 2-
15-143;
 - (c) links to Indian education for all resources provided by the office of public instruction under Title
20, chapter 1, part 5, including any courses required to be taken by certified school personnel under standards
adopted by the board of public education; and

(d) any other resources determined to be valuable by the STATE DIRECTOR OF INDIAN AFFAIRS AND THE legislative services division.

Section 2. Section 2-15-143, MCA, is amended to read:

"2-15-143. Training and consultation. (1) At least once a year, the governor's office and a trainer selected by the tribal governments shall provide training in Helena or a site mutually agreed ~~upon~~ on to state agency managers and key employees who have regular communication with tribes on the legal status of tribes, the legal rights of tribal members, and social, economic, and cultural issues of concern to tribes. Pursuant to [section 1], the state director of Indian affairs shall collaborate with the legislative services division to ensure that legislators are aware of and invited to participate in this training.

(2) At least annually, the governor shall convene in Helena a working meeting with representatives of state agencies and tribal officials, including tribal presiding officers, to discuss:

(a) tribal concerns with rules and policies that directly impact tribal government and tribal populations;

(b) other issues of concern to either the state or the tribes; and

(c) potential solutions to the concerns.

(3) By August 15 of each year, each state agency shall submit to the governor a report for the prior fiscal year describing the activities of the state agency relating to tribal government and tribal populations. The report must include:

(a) any rule or policy changes that the state agency adopted because of discussions under subsection (2)(a);

(b) the process that the state agency has established to identify the activities of the state agency that affect tribes;

(c) the efforts of the state agency to promote communication and the government-to-government relationship between the state agency and the tribes; and

(d) the efforts of the state agency to ensure tribal consultation and the use of American Indian data in the development and implementation of agency programs that directly affect tribes.

(4) By ~~September~~ October 15 of each year, the governor shall provide to each tribal government a

1 report with an overview of all state and tribal activities for the prior fiscal year, including a description of the
2 training required under subsection (1). It is the intent of the legislature that this report be prepared within
3 existing levels of funding."

4
5 **Section 3.** Section 5-11-112, MCA, is amended to read:

6 **~~"5-11-112. Functional organization and responsibilities.~~** (1) ~~The legislative council may establish a~~
7 ~~functional organization within the legislative services division in order to effectively and efficiently carry out all of~~
8 ~~the responsibilities delegated to the division by law or legislative rule. The responsibilities of the legislative~~
9 ~~services division include the following:~~

10 (a) ~~document services:~~

11 (i) ~~bill drafting and preparation for introduction;~~

12 (ii) ~~engrossing and enrolling;~~

13 (iii) ~~distribution of legislative bills and information;~~

14 (iv) ~~coordination of legislative printing; and~~

15 (v) ~~publication of legislative records;~~

16 (b) ~~research and reference services:~~

17 (i) ~~general and specialized legislative research; and~~

18 (ii) ~~legislative reference and information;~~

19 (c) ~~legal services:~~

20 (i) ~~legal review of draft bills;~~

21 (ii) ~~legal counseling on legislative matters;~~

22 (iii) ~~legal support for consolidated entities; and~~

23 (iv) ~~support for the functions of the code commissioner provided in 1-11-201;~~

24 (d) ~~committee services:~~

25 (i) ~~research, legal, and administrative staff support for consolidated committees as assigned,~~
26 ~~including support for interim committees organized under Title 5, chapter 5, part 2; and~~

27 (ii) ~~research and legal support for legislative standing and select committees;~~

28 (e) ~~broadcasting services, in accordance with Title 5, chapter 11, part 11;~~

(f) — management and business services:

(i) — financial records;

(ii) — claims and payrolls;

(iii) — coordination of procurement of printing, supplies, and equipment; and

(iv) — maintenance of property inventories;

(g) — personnel and administrative services:

(i) — rules for classification and pay; and

(ii) — personnel and administrative policies; and

(h) — information technology services:

(i) — legislative branch network support services;

(ii) — application support and development;

(iii) — communications support and coordination; and

(iv) — information technology planning; and

(i) — training for legislators, including state-tribal relations training pursuant to [section 1].

(2) — The responsibilities of the legislative services division must be fulfilled collaboratively with consolidated entities whenever the efficient operation of the legislative branch is served."

NEW SECTION. Section 3. Notification to tribal governments. The secretary of state shall send a copy of [this act] to each federally recognized tribal government in Montana.

NEW SECTION. Section 4. Codification instruction. [Section 1] is intended to be codified as an integral part of Title 5, chapter 11, part 1, and the provisions of Title 5, chapter 11, part 1, apply to [section 1].

NEW SECTION. Section 5. Effective date. [This act] is effective July 1, 2025.

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